

Rajendra Kumar v. State of U.P.

Allahabad High Court · Division Bench · 17 January 2020 · WRIT - C No. - 1377 of 2020 · **Writ disposed; EE to hear objections and pass a speaking final order; coercive recovery stayed; s.127 liberty.**

HEADNOTE

A consumer challenging a recovery citation for want of hearing was directed to appear before the Executive Engineer with objections. A speaking final order was required within four weeks; coercive action was stayed for eight weeks or until the objection was decided; any remaining grievance was left to appeal under s.127 of the Electricity Act, 2003. The writ was disposed of without examining the demand.

FACTUAL SUMMARY

Rajendra Kumar, a consumer, filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery certificate dated 30 September 2018 and mandamus directing the electricity authorities to issue bills according to meter reading. He alleged that the respondents were taking coercive recovery action without any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Court did not examine the quantum or legality of the demand.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order on recovery objections; relegation to s.127 appeal

HOLDING

On a challenge to a recovery citation for want of hearing, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for eight weeks or until disposal of the objection, and left any remaining grievance after that final order to the statutory appeal under s.127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the recovery citation, the Court relegated any remaining grievance to the statutory appeal under s.127 rather than deciding the demand in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 30.09.2018 AND WHETHER BILLS WERE PAYABLE AS PER METER READING

Writ disposed without examining the demand on merits. ¶ 1

NOT DECIDED — WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 HEARING AND RECOVERY PROCEDURE HAD BEEN FOLLOWED

¶ 1